

IN THE DISTRICT COURT OF

COUNTY, NEBRASKA

Choose the county

_____,
(name of plaintiff in original action) Plaintiff,

Case No. _____

vs.

_____,
(name of defendant in original action) Defendant.

**ANSWER AND
COUNTERCLAIM TO
COMPLAINT FOR
MODIFICATION
(Child Support)**

ANSWER

COMES NOW, _____, the ☐ plaintiff
(your full name)

☐ defendant in the above-captioned matter, and for the Answer to the other party's Complaint for Modification, hereby admits, denies, and alleges as follows:

1. Admits Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you agree)
2. Denies Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you disagree)

COUNTERCLAIM

I, _____, the ☐ plaintiff ☐ defendant in the
(your full name)
above-captioned action, without assistance of an attorney, hereby state and allege as follows:

1. On _____ the court ordered _____
(date of the most recent order setting child support) (name of payor)
to pay child support for the below listed child(ren):

(name of child) (child's year of birth)

(name of child) (child's year of birth)

(name of child) (child's year of birth)

(name of child)

(child's year of birth)

☐ Additional children are listed on a separate page.

Pursuant to the Nebraska Child Support Guidelines, child support payments were to begin on the 1st day of _____, and continue on the first
(month and year the most recent order setting child support became effective)
day of each subsequent month thereafter in the amounts set forth:

_____ per month for _____ children
(support amount) (number of children)

_____ per month for _____ children
(support amount) (number of children)

_____ per month for _____ children
(support amount) (number of children)

_____ per month for one child
(support amount)

☐ Additional children are listed on a separate page.

2. There has been a material change in circumstances since the date the Order was entered.

3. _____ is eligible for a Modification of
(name of payor)
the Child Support Order within the meaning of the Nebraska Child Support Guidelines and Nebraska Statutes.

4. Application of the Nebraska Child Support Guidelines to the party(ies) current income would ☐ increase ☐ decrease the monthly child support obligation by 10% or more, and by not less than \$25 per month.

5. The material change in the party(ies) circumstances since the date of the most recent order setting child support is as follows: (check all that apply)

☐ _____'s employment income has substantially
increased. (name of party)

☐ _____'s employment income has substantially
decreased. (name of party)

6. The change in the party(ies) financial circumstances has lasted for three months and can reasonably be expected to last for an additional six months.

WHEREFORE, I ask that this court modify the child support obligation entered on _____, and ☐ increase ☐ decrease the monthly child (date of the most recent order setting child support) support obligation to an amount consistent with the Nebraska Child Support Guidelines, and for such other relief as the court deems appropriate.

Signature: _____ Date: _____
Printed Name: _____
Street Address/P.O. Box: _____
City/State/ZIP Code: _____
Telephone Number: _____
*Email address: _____

*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

CERTIFICATE OF SERVICE

I hereby certify that on _____, a true copy of the
(date)
foregoing Answer and Counterclaim for Modification of Child Support was sent
by first-class mail, postage prepaid, to the other party at _____
_____.
(address, including street address, city, state, and ZIP code)

(your name)